

LEGAL RESEARCH MEMORANDUM

Possession, Trespass and Declaration of Title

A verification and doctrinal analysis of

OLUWI v ENIOLA and NWOSU v OTUNOLA

Date	20 July 2026
Jurisdiction	Nigeria
Court	Supreme Court of Nigeria
Subject	Land law — possessory title, trespass and injunction

RESEARCH STATUS: VERIFIED WITH QUALIFICATIONS

Executive conclusion

Both authorities are genuine Supreme Court decisions. The references initially supplied contained typographical errors, and the attribution to Ogbuagu JSC requires correction. Their central doctrine remains sound: trespass to land protects possession. A claimant who proves actual or legally cognisable possession may sue a wrongdoer who cannot establish a better title or superior right to possession. A claim in trespass is therefore distinct from, and does not automatically fail with, a claim for declaration of title.

Authority supplied	Verified citation	Finding
Oluwi v Eniola (1967) NMLR “3390 at 340”	Oluwi v Eniola (1967) NMLR 339 at 340	“3390” is a typographical error.
Nwosu v Otunola “19740\4 SC 21”	Nwosu v Otunola (1974) 4 SC 21; (1974) 1 All NLR (Pt. 1) 533	Year and report string corrected.
“Per Ogbuagu JSC”	Echere v Ezirike (2006) 12 NWLR (Pt. 994) 386; LPELR-1001(SC)	Ogbuagu JSC cited the older cases in the later decision; he did not sit in Nwosu.

1. Questions investigated

1. Whether the two authorities exist and are correctly cited.
2. What legal propositions the cases actually establish.
3. Whether the reference to Ogbuagu JSC is accurate.
4. How the authorities may safely be used in a pleading or written address.
5. What factual and doctrinal limitations qualify the possession-based rule.

2. Oluwi v Eniola

2.1 Verified identity

George Ayeni Oluwi v Daniel Eniola, Suit No. SC.542/1965, decided by the Supreme Court of Nigeria on 17 November 1967. The panel comprised Brett, Lewis and Madarikan JJSC. The accepted citation is (1967) NMLR 339 at 340; the decision is also reported in the 1967 Nigerian Supreme Court Cases at pages 248–250.

2.2 Facts and issues

The plaintiff claimed a declaration of title, damages for trespass and an injunction. The trial court rejected the case because the area allegedly granted to the plaintiff had not been sufficiently established. On appeal, the declaration claim was conceded to be unsustainable, but the Court had to determine whether the trespass and injunction claims necessarily failed with it.

2.3 Ratio and significance

The Supreme Court separated the three remedies. Trespass depended upon proof of the plaintiff's possession and the defendant's wrongful interference, not upon success in establishing absolute title.

An injunction was not automatically barred merely because declaration failed. In the particular case, however, an injunction could not issue because its territorial subject was insufficiently defined.

A claim for trespass is independent of a claim for declaration of title; failure of the latter does not, without more, determine the former.

3. Nwosu v Otunola

3.1 Verified identity

Nwosu v Otunola, Suit No. SC.51/1973, decided by the Supreme Court on 25 April 1974. The panel comprised Elias CJN, Fatayi-Williams and Sowemimo JJSC. Citations found include (1974) 4 SC 21, (1974) 1 All NLR (Pt. 1) 533 and (1974) 4 SC (Reprint) 14. The variation between page 14 and page 21 reflects different report editions or reprints; the citation (1974) 4 SC 21 is widely used in Nigerian decisions and texts.

3.2 Material facts

The action concerned premises at No. 42A Bale Street, Aiyetoro, Ajegunle, Apapa. The plaintiff sought recovery of possession, mesne profits or damages for unlawful occupation, and an injunction. The High Court entered a non-suit on the ground that the plaintiff had failed to establish his right to possession. The controversy consequently required close attention to the nature and comparative strength of the parties' possessory claims.

3.3 Principle

The case supports the proposition that possession may sustain trespass against a defendant unable to demonstrate a better title or superior right to possession. Later Supreme Court decisions have expressed the point by saying that even slight possession may suffice against such a wrongdoer. The statement is comparative, not absolute: the claimant must prove possession of the relevant land, and the defendant may answer the case by proving the better entitlement.

4. Correct treatment of Ogbuagu JSC

Ogbuagu JSC did not deliver the judgment in Nwosu v Otunola and was not a member of its 1974 panel. The likely source of the attribution is Matthew Echere & 3 Ors v Christopher Ezirike & 6 Ors (2006) 12 NWLR (Pt. 994) 386; (2006) LPELR-1001(SC), SC.350/2001, decided on 12 May 2006.

In Echere, Ogbuagu JSC referred to Oluwi v Eniola and Nwosu v Otunola while explaining that possession is sufficient to maintain trespass; possession must be of a character appropriate to the property; wrongful entry does not, by itself, install the trespasser in lawful possession; and trespass is an injury to a possessory right. Accordingly, the accurate description is "per Ogbuagu JSC in Echere v Ezirike, applying Oluwi v Eniola and Nwosu v Otunola."

5. Consolidated legal propositions

Proposition	Meaning
Possession is the foundation	Trespass protects a possessory interest. Ownership is relevant but is not invariably a

	condition precedent.
Independent remedies	Declaration of title, damages for trespass and injunction are distinct remedies with different elements.
Comparative entitlement	Possession succeeds against a bare wrongdoer but yields to a person who proves a better title or superior immediate right to possession.
Identity of land	The claimant must connect the possession and wrongful entry to the same identifiable land.
Injunction	An injunction requires sufficient certainty of subject matter and a continuing interest warranting prospective protection.
Effect of failed title claim	Failure to prove declaration does not automatically destroy trespass, but the reason for the failure and the remaining evidence of possession must be examined.

6. Evidential application

To rely on the authorities successfully, the evidence should establish possession before the alleged trespass through acts appropriate to the character of the land. Depending on the facts, relevant indicators may include:

- occupation, cultivation, construction or development;
- fencing, boundary maintenance or other acts of physical control;
- letting to tenants, receiving rents or installing caretakers;
- granting permission to others to use the land;
- regular exercise of rights over the land; and
- proof that the defendant entered the particular land without consent or other lawful authority.

7. Limitations and litigation cautions

A bare assertion is insufficient: The claimant must prove possession by credible evidence. The maxim does not relieve the claimant of the burden of connecting himself to the land.

The land must be certain: Uncertainty about location, dimensions or boundaries can defeat the factual case and may independently prevent an injunction.

Better title remains decisive: Where both parties claim possession, the court may investigate title to determine the better right to possess.

Trespass is not declaration: A judgment in trespass may determine the superior possessory right between the parties without declaring absolute ownership against the world.

Relief must match current interest: A claimant who has sold, transferred or surrendered the relevant interest may lack the continuing basis required for an injunction.

8. Recommended formulation for written address

It is settled law that trespass to land is essentially an injury to possession. Accordingly, a claimant who establishes actual or legally cognisable possession may maintain an action in trespass against every person who cannot show a better title or superior right to possession. A claim in trespass is independent of a claim for declaration of title, and failure of the latter does not, without more, occasion failure of the former. See Oluwi v Eniola (1967) NMLR 339 at 340; Nwosu v Otunola (1974) 4 SC 21; (1974) 1 All NLR (Pt. 1) 533; and Echeri v Ezirike (2006) 12 NWLR (Pt. 994) 386.

Where an injunction is sought, the following may be added:

Nevertheless, the land over which injunctive relief is sought must be established with sufficient certainty to make the order clear, enforceable and confined to the proven area: Oluwi v Eniola (supra).

9. Final opinion

The authorities are valid and remain useful for the possession-based doctrine of trespass. The safe citation is Oluwi v Eniola (1967) NMLR 339 at 340 and Nwosu v Otunola (1974) 4 SC 21; (1974) 1 All NLR (Pt. 1) 533. Ogbuagu JSC should be attributed to the later judgment in Echeri v Ezirike, not to Nwosu itself. Any reliance on the authorities must be tied to evidence of prior possession, identity of the land, wrongful interference and the absence of a superior right in the defendant.

Authorities and online verification sources

- **Oluwi v Eniola — case report record:** <https://ng.vlex.com/vid/oluwi-v-eniola-914408020>
- **Nwosu v Otunola — electronic case record:** <https://www.judiciary.legal/case/nwosu-v-otunola-supreme-1974>
- **Echeri v Ezirike — judgment text:** <https://sheriahub.com/cases/ng/caselaw/matthew-echeri-3-ors-v-christopher-ezirike-6-ors-sc-35020012006-ngsc-111-12-may-2006>

Research note: Electronic reports were cross-checked for case identity, panels, dates, citations and propositions. Before filing, counsel should compare the quoted formulation with the authorised hard-copy report available to the court or chambers library.